

Tentative Rulings for September 3, 2026, Probate Calendar

**Judge James T. Chou
Department C**

**APPEARANCES MAY BE MADE
IN PERSON
OR ON ZOOM.**

To Join a Zoom Meeting, please follow this link: www.marin.courts.ca.gov

- 1. Click on the “Virtual Courtrooms” icon and then on “Zoom Civil / Family / Probate Court Calendar Appearance Information”**
- 2. Scroll down to Department C – Probate for the connection information.**

Any interested party who wishes to appear for oral argument on the tentative ruling must do the following no later than 4:00 PM one Court day prior to the scheduled hearing date (MCR 6.2.D):

- 1. Notify all other parties entitled to notice of the underlying petition, including the attorneys for represented parties; and**
- 2. Advise the clerk’s office by leaving a message at (415) 444-7046, option 5.**

There is no need to inform the Court of your intent to appear if the tentative ruling requires an appearance.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at (415) 444-7260. Confidential cases include applications for Special Immigrant Juvenile Status.

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Judge James T. Chou
Department C
9:00 Calendar

PR0000038 IN THE MATTER OF BRADFORD E. THOMSON

1. Petition for Probate of Will and for Letters Testamentary, filed by Lesley L. Bautista on 9/29/25.
2. Order to Show Cause - as to why the petition should not be dismissed for the failure to comply with the Court's order.
3. Motion for Preliminary Injunction, filed by Lyle Douglas Thomsen on 3/12/26.

Ruling. The parties are **ordered to appear.**

PR0000201 IN THE MATTER OF DEIDRA ANN CARSON

Report Regarding Status of Filing Petition for Final Account, filed by Christopher B. Barry on 8/13/26.

Ruling. This matter is **continued to October 1, 2026, at 9:00 a.m.** The Report of Status of Administration must be made by the personal representative. (Prob. Code, § 12200.) Executor is **ordered** to:

1. **File** a Supplement to the Report Regarding Status filed on 8/13/26 that includes a verification to the Report and any additional information necessary to comply with Probate Code section 12201, subd. (a).
2. **Mail** notice to all interested parties using the mandatory Judicial Council Form "Notice of Hearing – Decedent's Estate or Trust" with the box checked in Item 1 stating this is a report of status of administration. (Judicial Council Forms, form DE-120.)
3. **File** a copy of the DE-120 that was mailed, with the Proof of Service completed on page 2 showing that all interested parties received at least fifteen days' notice of the Report of Status of Administration. (Prob. C. § 12201(b).)
4. The documents must be filed at least **five court days prior to hearing.** (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PR0000354 IN THE MATTER OF THE STEVEN J. KAUFMAN DECLARATION OF TRUST AGREEMENT

1. Verified Petition for (1) Order Setting Aside Trust Amendment Due to Incapacity; and (2) Declaratory Relief Regarding Incapacity of Steven Kaufman, filed by Alon Adani on 1/12/24.
2. Order to Show Cause – Dismissal of Outstanding Petition.

Ruling. The Petition and the Order to Show Cause are **continued to October 22, 2026, at 9:00 a.m.**

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PR000713 IN THE MATTER OF KEVIN DAVID CARROLL

Report of Status of Administration of Estate, filed by Marin County Public Administrator on 8/13/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**.

Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by October 15, 2026**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report **shall be set on November 5, 2026, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on November 5, 2026, at 9:00 a.m.

PR0000753 IN THE MATTER OF NELSON GEORGE GORDY

2nd Report of Status of Administration, filed by William C. Hayman on 6/26/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**.

Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by August 19, 2027**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report **shall be set on September 9, 2027, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on September 9, 2027, at 9:00 a.m.

PR0001056 IN THE MATTER OF FABIO ANGIULI CORTARA

1. Petition for Final Distribution; Settlement of First and Final Account, Report of the Administrator of the Estate of Fabio Angiuli Cortara and Petition for Allowance of Compensation to Attorney and Administrator for Ordinary Services; Petition for Extraordinary Compensation, filed by Nicole Marie Angiuli on 10/7/25.
2. Petition Under Probate Code § 850 to Determine Ownership of Real and Personal Property by the Estate of Fabio Angiuli Cortara, Directing Transfer of Said Property to the Estate of Fabio Angiuli Cortara, and Under Probate Code §§ 1060, et seq. Requiring Nicole Angiuli, Administrator of the Estate of Fabio Angiuli Cortara, to Provide an Accounting of the Assets of the Estate, filed by Salvatore Cortara on 1/15/26.
3. Status Conference – Resetting of Trial

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Ruling. The parties are **ordered to appear**.

PR0001062 IN THE MATTER OF KEITH STONEKING

First and Final Report of Executor; Petition for Approval of Statutory and Extraordinary Compensation; and for Final Distribution, filed by Jacquelyn M. Reynolds on 7/1/26.

Ruling. The Court has considered the Objections filed by Robert Zeman on August 14, 2026 and the reply filed by Petitioner on August 20, 2026, as well as the supplemental reply brief filed by Robert Zeman on August 31, 2026. Robert Zeman's objections are **overruled**, and the Petition is **granted**. Petitioner is **ordered to submit** a proposed order that complies with the Rules of Court as to testamentary trusts. (Cal. Rules of Court, rule 7.650.)

PR0001278 IN THE MATTER OF RUTH KATHLEEN McCREIGHT

Petition for Order Compelling Accounting by Administrator, filed by Craig McCreight on 7/22/26.

Ruling. Pursuant to Probate Code 10950, the petition is **granted**. Administrator Peter Maier is **ordered to file** an accounting and petition for approval of accounting **by no later than September 30, 2026**. This matter is **now set for** hearing on the Petition for Approval of Accounting on **October 22, 2026**. Administrator Peter Maier is **ordered to serve** all parties and interested persons with proper notice of the October 22, 2026 hearing.

PR0001312 IN THE MATTER OF DANIEL R. DOMINGUEZ

First Report of Administrator, filed by Daniel M. Dominguez on 7/16/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by December 17, 2026**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report **shall be set on January 7, 2027, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on January 7, 2027, at 9:00 a.m.

PR0001424 IN THE MATTER OF ROBERT HENRY BECKER

Petition for Final Distribution on Waiver of Accounting; for Allowance of Statutory Attorney's Fees; and for Final Discharge, filed by Juan Isaza on 6/23/26.

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Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001432 IN THE MATTER OF MARY V. VIEIRA

Petition for Final Distribution on Waiver of Account, and for Allowance of Statutory Fees, filed by Gayleen M. Vieira-Maas on 7/10/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001441 IN THE MATTER OF CECILIA ANN BUTTERWORTH

Waiver of Account and Report of Administrator and Petition for Distribution and for Allowance of Ordinary compensation, filed by Paul Butterworth on 9/21/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001638 IN THE MATTER OF THERESA SHIFS

Petition for Orders: (1) Determining Dominique Owens' and Rachael Clausen's Entitlement to Distribution; (2) Enforcement Promise by Hanna Shifs; (3) Awarding Damages for Hanna Shifs' Breach of Contract, Fraudulent Conduct, and Intentional Interference with Expected Inheritance, filed by Rachael Clausen and Dominique Shifs Owens on 7/16/26.

Ruling. The parties are **ordered to appear.**

PR0001787 IN THE MATTER OF OSCAR CARLSON

Petition for Letters of Administration and for Letters of Special Administration, filed by Linnea Carlson on 8/14/26.

Ruling. In light of Petitioner Linnea Carlson's request that this Petition be dismissed, the Petition for Letters of Administration and for Letters of Special Administration, filed by Linnea Carlson on 8/14/26 is **denied without prejudice.**

PR0001818 IN THE MATTER OF DONALD A. WELLS REVOCABLE TRUST DATED SEPTEMBER 19, 1988, AS RESTATED AND AMENDED APRIL 16, 1997

Trustee's Petition for Instructions Re (1) Notice of Proposed Action; (2) Interpretation of Terms of Trust and to Determine Distribution of Property, filed by Michael D. Robinson on 5/19/26.

Ruling. The parties are **ordered to appear.**

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PR0001864 IN THE MATTER OF TERRENCE A. LARSEN

Spousal Property Petition, filed by Carolyn Kelly Larsen on 6/22/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001872 IN THE MATTER OF GARY ENRICO GOMES

Petition for Letters of Administration, filed by Kimberly Gomes on 6/29/26.

Ruling. This matter is **now set for October 1, 2026, at 9:00 a.m.** in Department C, on an **Order to Show Cause** as to why this petition should not be denied for failure to comply with this Court's August 6, 2026, order.

PR0001880 IN THE MATTER OF FRED L. BERENSMEIER AND BARBARA J. BERENSMEIER REVOCABLE TRUST

Petition to Determine Claim to Property, filed by Paul F. Berensmeier on 7/8/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001883 IN THE MATTER OF JAMES L. WANVIG 2003 TRUST

Petition for Instructions, filed by Jacob Troyer on 7/7/26.

Ruling. The parties are **ordered to appear.**

PR0001884 IN THE MATTER OF HOCHSTOEGER FAMILY TRUST

Verified Petition to Terminate Trust, filed by Michael Hochstoeger on 7/7/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001925 IN THE MATTER OF NANCY JEANNE O'LEARY

Petition for Letters of Administration, filed by Evan O'Leary on 8/3/26.

Ruling. Absent objections, this Petition will be **granted without hearing.** Petitioner is **ordered to comply** with the following future dates:

1. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 14, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)

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- b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)
- 2. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report on Status of Administration **shall be filed by September 9, 2027**, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be **set on September 30, 2027**, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on September 30, 2027, at 9:00 a.m.

PR0001927 IN THE MATTER OF PAUL RICHARD CALDERARO

Petition for Letters of Administration, filed by Marin County Public Administrator on 8/4/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to comply** with the following future dates:

- 3. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be **set on January 14, 2027, at 10:00 a.m.** (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)
- 4. Status on Closing Estate.
 - c. Either: (1) a Petition for Final Distribution; or (2) a Report on Status of Administration **shall be filed by September 9, 2027**, as required by Probate Code sections 12200 and 12201.
 - d. A status hearing re filing the Petition or Report shall be **set on September 30, 2027**, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on September 30, 2027, at 9:00 a.m.

PRO042829 THE GRAHAM SALTONSTALL SPECIAL NEEDS TRUST, IN THE MATTER OF

Petition to Approve Twelfth Account and Report of Trustee from 2/1/24, Through 1/31/26, and to Confirm Trustee's and Trust Advisory Committee Member Fees; and Approve Attorneys' Fees, filed by Westamerica Bank on 6/8/26.

Ruling. Absent objections, the Twelfth Account and Report of Trustee will be **granted without hearing**. Trustee is **ordered to comply** with the following future dates:

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1. Trustee's Thirteenth Account and Report for the period 2/1/26 – 1/31/28 shall be **filed by April 13, 2028**.
2. A status hearing re filing the Thirteenth Account and Report shall be **set on May 18, 2028, at 10:00 a.m.**
 - a. If the Thirteenth Account and Report is not timely filed, an appearance will be required.
 - b. If the Thirteenth Account and Report is timely filed, the hearing will be set on **May 18, 2028, at 9:00 a.m.**

PRO1501502 THE DOMINIC VELETZOS SPECIAL NEEDS TRUST, TRUST OF

Sixth Account and Report of Trustees; Petition to Settle Account; to Increase Bond; and to Fix and Allow Attorneys' Fees and Costs, filed by Philippe Veletzios and Roxanne Veletzios on 8/20/26.

Ruling. This matter is **continued to October 15, 2026, at 9:00 a.m. Petitioner is ordered to:**

1. Mail notice to all interested parties using the mandatory Judicial Council Form "Notice of Hearing – Decedent's Estate or Trust". (Judicial Council Forms, form DE-120.)
2. File a copy of the DE-120 that was mailed, with the Proof of Service completed on page 2 showing that all interested parties received at least thirty days' notice of the Twelfth Account and Report. (Prob. C. §17203.) The Proof of Service must be filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PRO1704416 IN RE THE PHILIP M. SHEPARD TRUST, TRUST OF

Motion for: (1) Enforcement of 1/22/18 Order; (2) OSC Re Contempt; (3) Compel Co-Trustees to Provide Corrected Final Distribution; and (4) Sanctions and Attorney's Fees, filed by Kathleen Shepard on 2/10/26.

Ruling. This matter is improperly before this court as a motion seeking relief that should properly be brought by way of a Probate Code compliant petition. The motion is **denied**.

PRO1802115 ROSEMARY THERESA BOCK, ESTATE OF

Amended Petition for Order on Report of Administrator; for Waiver of Account; for Statutory Administrator's and Attorney's Compensation; for Reimbursement of Costs Advanced; and for Final Distribution, filed by Holger Siegwart on 8/26/26.

Ruling. This matter is **continued to October 1, 2026, at 9:00 a.m. Petitioner is ordered to:**

1. Mail notice of the Amended Petition to all interested parties using the mandatory Judicial Council Form "Notice of Hearing – Decedent's Estate or Trust". (Judicial Council Forms, form DE-120.)
2. File a copy of the DE-120 that was mailed, with the Proof of Service completed on page 2 showing that all interested parties received at least fifteen days' notice of the Report of Status of Administration. (Cal. Rules of Court, rule 7.53(a).)

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PRO2100743 IN RE THE MILO O. ZADA SPECIAL NEEDS TRUST, TRUST OF

Petition for Approval of Tenth Account and Report of Trustee; for Increase in Bond; and for Allowance of Attorney's Fees, filed by Elizabeth A. Warren on 6/30/26.

Ruling. The parties are **ordered to appear**.

PRO2200267 IN THE MATTER OF THE ANDERSON FAMILY TRUST

First Account & Report of Trustee; Petition to Settle Account; and for Confirmation of Trustee Fees and Attorney Fees, filed by Elizabeth Soloway on 5/15/26.

Ruling. The Court has considered the late filed objections of Diana Anderson and **overrules** them. The First Account & Report of Trustee filed by Elizabeth Soloway on May 15, 2026 is **accepted and approved**. Petition to Settle Account; and for Confirmation of Trustee Fees and Attorney Fees, filed by Elizabeth Soloway on 5/15/26 is **granted**.

PRO2203293 IN THE MATTER OF DEBORAH A. COOPER

Eleventh Account and Report of Trustee and Petition for Settlement; for Reduction of Bond; and for Approval of Fees and Reimbursement of Costs Advanced to Attorney from Special Needs Trust, filed by Cathryn C. Jenkins on 7/1/26.

Ruling. The parties are **ordered to appear**.

PRO2300714 NADINE LOVERIDGE, ESTATE OF

Report of Administration, Petition for Statutory Compensation for the Attorney for the Administrator, and Petition for Final Distribution on Waiver of Account, filed by Lisa Loveridge on 7/13/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to submit** a proposed order to the Court within five court days of this ruling.

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Judge James T. Chou
Department C
10:00 Calendar

PR0001606 IN THE MATTER OF ROBERT H. LARSEN

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001625 IN THE MATTER OF THELMA MARK JAMES MILBERG

Status Conference - Filing of Final Inventory and Appraisal

Ruling. Administrator Lauren Sugarman is **ordered to appear**.

PR0001625 IN THE MATTER OF THELMA GALLEGIONI

1. Status Conference - Filing of Final Inventory and Appraisal
2. OSC – Why attorney Mario Paolini and Ermanno Gallegioni, Jr. should not be sanctioned in the amount of \$149 for each of the following: (1) failure to appear on 8/13/26 and (2) failure to file the Final Inventory and Appraisal.

Ruling. Executor Ermanno Gallegioni, Jr., and attorney Mario G. Paolini, Jr. are **ordered to appear**.

PR0001686 IN THE MATTER OF JAN MARIE NILSEN

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001687 IN THE MATTER OF KATHARINE E. TOPKINS

Status Conference - Filing of Final Inventory and Appraisal

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Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001697 IN THE MATTER OF JACQUELINE ANNE MONTES

Status Conference - Filing of Final Inventory and Appraisal

Ruling. Administrator Melissa Rose Montes, and attorney Nancy E. Lofdahl are **ordered to appear**.

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Judge James T. Chou
Department C
1:30 Calendar

PR0001086 IN THE MATTER OF SUNSHINE SHERRY LYNN BRADLEY

Petition for Approval of First Annual Accounting, filed by Pamella Anne Bradley and Adalberto Beattie, Jr. on 6/26/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Guardians are **ordered to comply** with the following future dates:

1. Second Account.
 - a. Guardians **are to file** the Second Account for the period ending 5/22/26 – 5/21/28 **by August 3, 2028**.
 - b. A hearing shall be set for August 24, 2028, at 1:30 for either:
 - i. Hearing on the First Account; or
 - ii. Explanation as to why it was not timely filed.

PR0001440 IN THE MATTER OF ROBERT RAUDSO

Petition for Instructions Regarding Payment of Civil Litigation Counsel, filed by Jennifer Winship on 3/23/26.

Ruling. The parties are **ordered to appear**.

PRO1602863 OLIVIA ROSE GOMEZ, GUARDIANSHIP OF THE PERSON

1. Petition for Termination of Guardianship, filed by Olivia Gomez on 9/22/25.
2. Petition for Removal of Guardian of Olivia Rose Gomez, filed by Olivia Gomez on 7/15/26.

Ruling. The parties are **ordered to appear**.

PRO2203068 IN THE MATTER OF THOMAS R. CHADWICK

Second Account and Report of Conservator and Petition for Its Settlement, Allowance of Conservator's Commission and County Counsel's Fees, filed by Marin County Public Guardian on 7/14/26.

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Ruling. Absent objections, this Petition will be **granted without hearing**. Conservator is **ordered to comply** with the following future dates:

1. Third Account.
 - a. Conservator **is to file** the Third Account for the period ending 5/1/26 – 4/30/28 **by July 13, 2028**.
 - b. A hearing **shall be set for August 24, 2028, at 1:30** for either:
 - i. Hearing on the First Account; or
 - ii. Explanation as to why it was not timely filed.
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